

The Designation of Senior Advocates Rules, 1992

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State of Uttar Pradesh - Act

The Designation of Senior Advocates Rules, 1992

UTTAR PRADESH

India

The Designation of Senior Advocates Rules, 1992

Rule THE-DESIGNATION-OF-SENIOR-ADVOCATES-RULES-1992 of 1992

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The Designation of Senior Advocates Rules, 1992

Published vide High Court of Judicature at Allahabad, Administrative (G), Section, Notification No. 71/8-C-2, dated 28th February, 1992, published in U.P. Gazette, Part 2, dated 9th May, 1992

(Allahabad High Court)

1.

Short title, extent and commencement.

- (i) These Rules may be called the Designation of Senior Advocates Rules, 1992.

(ii)

These Rules extend to the whole jurisdiction of the High Court of Judicature at Allahabad.

(iii)

They shall come into force by notification from the date of its publication in the Official Gazette.

2.

Definitions.

- In these Rules unless the context otherwise requires-

(a)

"Advocate" means an Advocate entered in any roll under the provisions of Advocates Act, 1961;

(b)

"High Court" means as defined in Section 2 (g) of the Advocates Act, 1961;

(c)

"Roll" means the roll of Advocates prepared and maintained under the Advocates Act, 1961;

(d)

the term "Standing at the Bars" means the position of eminence attained by an Advocate at the Bar by virtue of his seniority, legal acumen and high ethical standards maintained by him both inside and outside the Court.

3.

Procedure for designation of Advocates as Senior Advocates.

- (i) Proposals for designation of Advocates as senior Advocates shall be considered on the recommendation of any Judge of the Court.

(ii)

The recommendation shall be accompanied by a written consent of the concerned Advocate that he agrees to be designated as 'Senior Advocate':

Provided that an Advocate whose name is not approved by the Court shall not be eligible for being considered again before the expiry of two years from the date of disapproval of the earlier proposal.

(iii)

In taking a decision whether the Advocate under consideration deserves to be so designated, the Court shall have regard to his standing at the Bar or special knowledge or experience in law.

(iv)

All decisions on recommendation for designation of an Advocate as a Senior Advocate shall be taken by secret ballot at Full Court meetings.

(v)

The recommendation of a Judge for designation of an Advocate as a Senior Advocate shall be deemed to have received the approval of the Court if the same is supported by a majority of two-thirds of the existing number of the Judges of the Court:

Provided that if the recommendation is disapproved by five or more of the Judges of the Court it shall be deemed to have disapproved by the Court.

4.

Designation of Advocates as Senior Advocates by the Chief Justice.

- (i) On the approval of the recommendation by the Court, the Chief Justice shall designate such an advocate as a Senior Advocate under Section 16 of the Advocates Act, 1961.

(ii)

Upon designation of an advocate as Senior Advocate the Registrar shall notify the fact to the Registrar of the Supreme Court of India, the Bar Council of Uttar Pradesh, Bar Council of India and also all the Director and Sessions Judges subordinate to the High Court.

(iii)

A record of all such recommendations with the opinion of the Court expressed thereon and the result shall be maintained by the Registrar of the Court for future reference.

5.

Restrictions for designation of Senior Advocates.

- A Senior Advocate shall be subject to such restrictions as the High Court, the Bar Council of India or the Bar Council of the State may prescribe.

6.

Canvassing.

- Canvassing by a nominee for designation as a Senior Advocate shall disqualify him for being so designated.

7.

Review.

- (i) If after being designated as a Senior Advocate, the Judges find that by virtue of his conduct and behaviour either inside or outside the Court he has so forfeited his right to the distinction conferred upon him by the Court, the matter may be placed by the Chief Justice on a request made in that behalf by one or more Judges before the Full Court for a consideration of the question whether the decision of the Court designating him as a Senior Advocate should not be recalled.

(ii)

If at such meeting two-thirds or more of the existing number of Judges of the Court are of the view that the Senior Advocate has so forfeited his right to the privilege, the Court may recall its decision to designate him as a Senior Advocate and thereupon the Registrar shall notify the decision in the same manner as in clause 4 (ii) of these Rules.

8.

Repeal.

- On the date of coming into force of these Rules, the Rules framed by the High Court under Section 16 of the Advocates Act, 1961, published in Uttar Pradesh Gazette, Part II, dated 6th December, 1969, shall stand repealed.

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